

Food and feed safety: Council adopts new law to streamline rules on biocides

Today, the Council gave its final green light to new rules on **biocides** by extending certain data protection periods. The new regulation forms part of the so-called “**Omnibus X**” legislative package in the EU’s **simplification** agenda. The package aims to reduce administrative costs and burdens, while maintaining the EU’s very strict requirements for **food and feed safety**, health and environmental protection.



The law adopted today demonstrates that targeted amendments can deliver significant results for our industries. By extending certain data protection periods, we ensure fair treatment for companies while safeguarding fair competition within the internal market, in view of the upcoming full evaluation of EU rules on biocides. This represents another concrete deliverable of the Cyprus presidency under the simplification agenda, which remains a central priority of our work.

Marilena Raouna, Deputy Minister for European affairs of the Republic of Cyprus

The new regulation aims to improve the functioning of the **biocidal products** market in the EU, while ensuring a high level of protection for humans and the environment. Biocidal products are used to protect humans, animals, materials or articles against harmful organisms like pests or bacteria, by the action of the active substances contained in the biocidal product.

Due to delays in the **review** of existing active substances in biocidal products, the protection period for data generated expired on **31 December 2025**. To ensure fair compensation for data owners, the Commission had proposed to align the data protection period with the extended review programme until **31 December 2030**. This extension aims to balance stakeholder interests and ensure **regulatory fairness**, pending a full evaluation of the regulation in 2026-2027.

With a view to keeping the period during which data remain unprotected as short as possible, the co-legislators have treated the proposal with **utmost priority** and, in that perspective, supported the Commission proposal.

Next steps

The legislative act will be published in the Official Journal of the EU in the coming days and will enter into force the twentieth day following that of its publication.

Background

In October 2024, the European Council called on all EU institutions, member states and stakeholders, as a matter of priority, to take work forward, notably in response to the challenges identified in the reports by Enrico Letta (‘Much more than a market’) and Mario Draghi (‘The future of European competitiveness’). The Budapest declaration of 8 November 2024 subsequently called for ‘launching a simplification revolution’, by ensuring a clear, simple and smart regulatory framework for businesses and drastically reducing administrative, regulatory and reporting burdens, in particular for SMEs.

Since February 2025, as a follow-up to the call by EU Leaders at that and subsequent meetings, the Commission has put forward

ten 'Omnibus' packages aiming to simplify existing legislation on sustainability, investment, agriculture, small and mid-caps, digitalisation and common specifications, defence readiness, chemical products, digital issues including on AI, environment, the automotive sector and a tenth Omnibus on food and feed safety in December 2025. This initiative follows from a broader political objective of enhancing EU competitiveness, by reducing businesses' administrative burden and creating more favourable conditions for them to operate in the EU.

- [Regulation on the extension of data protection for certain existing biocidal active substances \(Omnibus X – Food and feed safety\), 11 May 2026](#)
- [Council agrees position to streamline rules on biocides \(press release, 4 March 2026\)](#)
- [Regulation on the extension of data protection for certain existing biocidal active substances, Commission proposal, 16 December 2025](#)
- [Simplification of EU rules \(background information\)](#)

Press office - General Secretariat of the Council of the EU

Rue de la Loi 175 - B-1048 BRUSSELS - Tel.: +32 (0)2 281 6319

press@consilium.europa.eu - www.consilium.europa.eu/press